

**Risk averse**

| <b>Fee rule</b>       | <b>Meritorious-P<br/>shortfall</b> | <b>Nonliable-D<br/>burden</b> | <b>Liabile-D<br/>excess burden</b> | <b>Gross outcome<br/>error</b> | <b>Total<br/>expenditures</b> |
|-----------------------|------------------------------------|-------------------------------|------------------------------------|--------------------------------|-------------------------------|
| American              | 0.500                              | 0.000                         | 0.000                              | 0.500                          | 0.000                         |
| Trial Fee-Shifting    | 0.300                              | 0.500                         | 0.000                              | 0.500                          | 0.600                         |
| Complete Fee-Shifting | 0.500                              | 0.000                         | 0.000                              | 0.500                          | 0.000                         |